



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

JAN 9 2001

DOT-E 12563

EXPIRATION DATE: December 31, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: U.S. Department of Energy
Washington, DC

(See Appendix A to this document for a list of additional grantees)

2. PURPOSE AND LIMITATION:

a. This exemption authorizes the one-time, one-way transportation in commerce of sodium in a non-DOT specification containment system for waste disposal. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.

b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.211(a) in that the use of a non-DOT specification packaging system is not authorized, except as specified herein.
5. BASIS: This exemption is based on the application of the U.S. Department of Energy (DOE) dated October 6, 2000 submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Sodium	4.3	UN1428	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification stainless steel containment system known as a cold trap manufactured by Gulf United Nuclear Fuels Corporation. It consists of a cylinder approximately 50.8 centimeters (20 inches) in diameter and 92.25 centimeters (37.5 inches) in height with two (2) stainless steel one inch pipe penetrations in one head of the cold trap. Both heads and cylinder shell are made of ASME SA240 Type 316 stainless steel, nominally 9.53 millimeters (0.375 inches) thick. The minimum wall thickness for both heads and shell is 8.38 millimeters (0.33 inches). Additional details of the containment system are described and shown in photographs submitted with the application, and on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA).

b. OPERATIONAL CONTROLS -

(1) The two stainless steel 1-inch pipe penetrations must be sealed with welded stainless steel caps.

(2) The cold trap must be placed horizontally and secured onto a wooden pallet with wood forms and bracing used to provide additional protection for the piping protrusions.

(3) No other hazardous materials may be loaded on the transport vehicle.

(4) The cold trap may only be transported from Richland, Washington to Clarence, New York, with no intermediate pick-ups or deliveries.

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8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. The cold trap must be plainly and durably marked "DOT-E 12563" as specified in §§ 172.302(b) and (c).

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

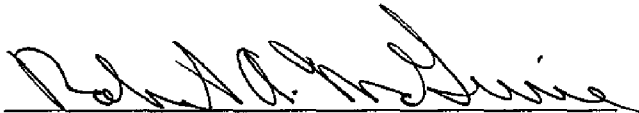
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12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

JAN 9 2001

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, S.W., Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

PO: R. Kirkpatrick